

Illinois Compiled Statutes (ILCS)

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Because the statute database is maintained primarily for legislative drafting purposes, statutory changes are sometimes included in the statute database before they take effect. If the source note at the end of a Section of the statutes includes a Public Act that has not yet taken effect, the version of the law that is currently in effect may have already been removed from the database and you should refer to that Public Act to see the changes made to the current law.

(625 ILCS 5/6-110.1)

Sec. 6-110.1. Confidentiality of captured photographs or images.

(a) The Secretary of State shall maintain a file on or contract to file all photographs and signatures obtained in the process of issuing a driver's license, permit, or identification card. Except as otherwise provided in this Section, the photographs and signatures shall be confidential and shall not be disclosed except to the following persons:

- (1) the individual to whom the driver's license or permit was issued, upon written request;
- (2) officers and employees of the Secretary of State who have a need to have access to the stored images for purposes of issuing and renewing driver's licenses, permits, or identification cards and investigation of fraud or other illegal activity;
- (3) law enforcement officials for a civil or criminal law enforcement investigation, except as restricted by Section 6-110.3;
- (3-5) the State Board of Elections for the sole purpose of providing the signatures required by a local election authority to register voters through an online voter registration system;
- (3-10) officers and employees of the Secretary of State who have a need to have access to the stored images for purposes of controlling notary public commissions and for the purpose of providing the signatures required to process online applications for appointment and commission as notaries public;
- (4) other entities that the Secretary may authorize by rule.

(b) The Secretary of State shall not provide facial recognition search services or